



File No.: EXP202211059

RESOLUTION OF FILE OF PROCEEDINGS

From the proceedings carried out by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On October 18, 2022, a complaint was filed with entry registration number ***REGISTRO.1 before the Spanish Agency for Data Protection against A.A.A. with NIF ***NIF.1 (hereinafter, the complained party). The reasons for the complaint are as follows:

“(…) the complained party is responsible for surveillance cameras installed at their home, which are clearly oriented both towards the public road, without prior administrative authorization for this, and towards their dwelling, adjacent to that of the complaining party (…).

It provides images of the location of the cameras and a complaint filed by the complained party against the complaining party and another neighbor, in which images of the claimed surveillance system were provided, observing the public road, as indicated by the GUARDIA CIVIL in the Diligence of Viewing of Images provided by the complained party.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the aforementioned complaint was forwarded to the complained party, so that they could analyze it and inform this Agency within one month of the actions taken to comply with the requirements established in the data protection regulations.

The transfer, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was notified in a timely manner as evidenced in the administrative file.

THIRD: On December 29, 2022, in accordance with Article 65 of the LOPDGDD, the complaint filed was admitted for processing.

FOURTH: The General Subdirectorate for Data Inspection proceeded to carry out preliminary investigative actions within the framework of File No. 202211059 for the clarification of the facts in question, by virtue of the functions assigned to the control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions of Title VII, Chapter I, Section Two, of the LOPDGDD, being aware of the following aspects:

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PRELIMINARY INVESTIGATIVE REPORT

BACKGROUND

Date of entry of the complaint: October 18, 2022

Complainant: B.B.B. (*hereinafter, the complaining party)

Complained: A.A.A. (*hereinafter, the complained party)

Facts according to the statements of the complaining party:

The complaining party states that the complained party is responsible for surveillance cameras installed at their home, which are clearly oriented both towards the public road, without prior administrative authorization for this, and towards their dwelling, adjacent to that of the complaining party.

It provides images of the location of the cameras and a complaint filed by the complained party against the complaining party and another neighbor, in which images of the claimed surveillance system were provided, observing the public road, as indicated by the GUARDIA CIVIL in the Diligence of Viewing of

Images provided by the complained party.

Date on which the claimed facts occurred: The report of the complaint filed with the Guardia Civil by the complained party against the complaining party is dated 05/20/2021, and according to the complaint itself, the reported facts occurred on 05/18/2021.

Relevant documentation provided by the complaining party:

- Copy of the complaint filed by the complained party against the complaining party and another neighbor, in which images of the claimed surveillance system were provided.
- Photographs of the cameras allegedly installed at the house of the complained party that would be capturing images of the public road and the house of the complaining party.

The action of transfer and request for information was notified to the complained party on November 2, 2022, by postal mail, in accordance with the provisions of Articles 41 and 42 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, according to the proof of delivery that is in the file.

There is no record that the complained party has responded to the action of transfer and request for information notified.

INVESTIGATED ENTITIES

A.A.A. with NIF ***NIF.1 with address at ***DIRECCION.1

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RESULT OF THE INVESTIGATION PROCEEDINGS

From the documentation incorporated into the preliminary proceedings along with the complaint, the following points are observed:

- That the claimant, along with their complaint, submitted the report filed by the defendant with the Civil Guard of ***LOCALITY.1, which includes images taken by a surveillance camera, in which, according to the viewing diligence provided by the Civil Guard itself, it is indicated that: in the first frame "A person is seen observing what appears to be a snake"; in a second frame, "The person is seen bending down to pick it up"; in a third frame, it is observed that "This person throws [the snake] towards the door of the complainant's home"; and in a fourth frame, "A snake can be seen located at the entrance of the complainant's house." As can be seen in the first three frames, in addition to observing "a person" and "what appears to be a snake," part of the street and the cars parked on the opposite sidewalk are also visible.

That is to say, from the images provided to the Civil Guard by the defendant, it is confirmed that the camera used captured images of the public road and the cars that were in front of the house where the camera was installed. And that such images were provided by the defendant.

- Additionally, photographs of what appear to be cameras installed on the antenna on the roof of a house and on the facade of a house are provided. According to the claimant, these cameras would be installed in the house of the defendant, although it is not proven that they are in the defendant's residence.

On 01/03/2023, a request for information was made to the defendant regarding the processing of images of individuals within the field of view of the cameras, as stated in the complaint submitted to this Agency, in accordance with data protection regulations:

1 - Indicate the NIF number and the contact email of the person responsible for the surveillance system.

2 - Indicate the number of cameras in the surveillance system, providing photographs of all these devices, as well as photographs of the monitor, mobile screen, or equivalent system used for viewing the images, in which the areas within the field of view of the cameras are visible. The cameras must not, under any circumstances, record or allow the viewing of adjacent land that is not owned by them, nor the interior of homes or any other private or reserved space, nor of the public road, except for the minimally necessary portion of the public road for the intended security purpose.

3 - If the cameras capture public roads, photographs of the sign or signs warning of the existence of a monitored area must also be provided, in which the information contained in the sign is clearly visible, as well as its location.

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4 - If cameras have been installed in the garage of the community parking lot, you must provide the minutes of the Homeowners' Meeting in which the installation of the cameras is approved by the majority required in Article 17.3 of Law 49/1960, of July 21, on Horizontal Property. You must also provide photographs of the sign or signs that warn of the existence of a video surveillance area with the details indicated above.

5 - In the event that you have contracted with a security company for the installation, maintenance, and/or management of the video surveillance system, you must provide a copy of the contract signed with the security company and, when possible, a technical report of the video surveillance system prepared by that company.

6 - If the surveillance system records images, indicate the retention period for these images.

7 - If the cameras are fake, provide the invoice, purchase receipt, or any other document that serves to prove that they are fake, or, failing that, provide a responsible declaration in which you state, under your responsibility, that the cameras are fake.

8 - If the cameras are not operational or have been removed and therefore do not allow for the viewing or recording of images, you may provide a responsible declaration.

9 - Any other information that you consider relevant and that may serve to assess the adequacy of the video surveillance system to data protection regulations.

This request for information was notified by post to the respondent on 08/03/2023 as indicated in the postal acknowledgment from Correos included in the file; there is no record that the respondent has replied to it.

On the other hand, on 08/03/2023, a letter from the Local Police of ***LOCALIDAD.1 was received at the Spanish Agency for Data Protection, indicating that: "For the appropriate purposes, we attach complaint bulletin no. ***NÚMERO.1 made by members of this Local Police numbers ***NÚMERO.2 and ***NÚMERO.3 on the day ***FECHA.1 at ***HORA.1, at ***DIRECCION.1, to Ms. A.A.A., with ID: ***NIF.1, and residing at ***DIRECCION.1, in ***LOCALIDAD.1; for violation of Organic Law 3/2018 on Personal Data Protection and Guarantee of Digital Rights, 'Having a video surveillance camera recording towards the public road.'

As there is no record of a response from the respondent to the first request dated 04/04/2023, the request is reiterated to the respondent, being returned as indicated in the acknowledgment of receipt from the postal service due to the claimant being absent during the two notification attempts made on 14/04/2023 and 18/04/2023.

Therefore, on 12/05/2023, the same request is sent again. This request for information was notified by post to the respondent on 22/05/2023 as indicated in the postal acknowledgment from Correos included in the file.

On 29/06/2023, a written response to this request was received in which the respondent communicates that "the security cameras that were installed on the street have been removed for several months since February 2023" and that the

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The reason she reported it was due to a "matter concerning a neighbor who moved into the neighborhood next to her house and was involved in drug dealing and who 'suffered an assault on January 26, 2021. She underwent several months of rehabilitation.' That 'she lived alone with a

7-year-old girl and had to leave her home for 19 months until the trial took place and a restraining order was issued against this woman, who continued with threats and insults until she even sent people to kidnap me to remove her from her house, that this trial is being prepared in the Court of

***LOCALITY.2, due to several complaints against this woman named B.B.B., 18 complaints, 1 for attempted kidnapping and another for assaulting me, following me to supermarkets, throwing dead animals at my front door, and insults and threats, and sending people to occupy my house if this is not a justified cause, I cannot say more, I filed complaints for some incidents that I did not report out of fear of leaving my house without having a surveillance camera that has already been removed."

Attached is a complaint dated 14/02/2023 filed with the Civil Guard of ***LOCALITY.1 against the claimant.

LEGAL GROUNDS

I

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

Following the amendments made to the current LOPDGDD (LO 3/2018, December 5) by Law 11/2023, of May 8, on the transposition of European Union directives regarding the accessibility of certain products and services, migration of highly qualified persons, taxation, and digitalization of notarial and registry actions; and by which Law 12/2011, of May 27, on civil liability for nuclear damage or damage caused by radioactive materials is amended, the procedural deadline established in Article 64.2 "in fine" is applied to the present procedure.

The procedure shall have a maximum duration of twelve months from the date of the initiation agreement. Upon expiration of this period, it will become void, and consequently, the proceedings will be archived.

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In this case, the complaint dated 18/10/22 is examined, through which the presence of an image capture device that may be misaligned without justified cause is reported.

The claimant states that she has become aware that the cameras affect public space by accessing a copy of the police report from the Civil Guard, which specifies that they affect public space.

The report includes the statement of the respondent, who indicates "neighborhood problems" that make coexistence impossible, as well as that fluids and objects of various natures are thrown at the door of her home.

The respondent has argued to this Agency that "the cameras have been removed" since February 2023, stating that the reason for their installation was to avoid conflicts with the neighbor, who has even "resorted to personal assault" with a restraining order against the aggressive neighbor.

In support of her claim, she provides copies of various complaints that detail "continuous situations of harassment and surveillance by ***COMPANY.1," "even threatening to kidnap her and harm her," creating a situation of permanent fear for the respondent.

This agency has extensively expressed its condemnation of various acts of vandalism and incivility, with countless cases analyzed where situations of bad neighborliness lead to circumstances such as those described.

In such situations, video surveillance cameras have proven effective in obtaining evidence (images) that must subsequently be submitted to the nearest Investigating Court or even the local Security Forces and Corps, who advise individuals to install them, even covertly, to substantiate the authorship of sometimes criminal acts.

A restrictive interpretation of the regulation cannot lead to situations of defenselessness for the victim, such that on one hand, she continues to suffer furtive attacks from someone acting in bad faith, and on the other hand, is deprived of the possibility of credibly substantiating the illegal acts she endures. Therefore, the presence of the cameras must be analyzed in the context in which their installation occurs, an aspect reflected in the various complaints filed with the State Security Forces and Corps, which document veiled threats, various property damage, insults, throwing of objects and fluids at private property, etc.

All of this justifies the presence of the cameras, which serve a preventive function against greater evils, with the images being perfectly admissible as evidence in law to substantiate what has been suffered before the appropriate judicial or police instances.

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To elaborate further, the impact of the aforementioned is minimal, affecting a limited area around the housing and perimeter of the respondent, where the neighbors referenced are often victims of the previously exposed facts, whose personal data is insignificant as they live in the same block and the matter is currently judicialized.

The local Security Forces are aware of the problems presented, as evidenced by the 18 complaints filed, as well as the existence of pending judicial cases in the local courts.

Finally, the respondent states that they have "removed" the cameras that are the subject of the complaint, so they are currently not installed in the indicated location, which aligns with the temporary nature of such measures in response to external aggressions that justifies the proportionality of the measure.

In cases like the one presented, with the proper guidance either from this Agency or from the local Security Forces, the installation of video surveillance cameras is permitted, which document the criminal acts and serve as a deterrent against aggressions from third parties who do not wish to live respecting the minimum rules of neighborly coexistence.

III

The principle of the presumption of innocence prevents the imposition of an administrative infringement when there is no obtained and verified evidence of the facts that motivate the accusation or of the alleged infringer's involvement in them. Applying the principle "in dubio pro reo" in case of doubt regarding a specific and determined fact, which obliges, in any case, to resolve such doubt in the most favorable manner for the interested party.

The presumption of innocence must govern without exceptions in the sanctioning system and must be respected in the imposition of any sanctions, as the exercise of the *ius puniendi* in its various manifestations is conditioned by the evidence and a contradictory procedure in which the parties can defend their positions. In this regard, the Constitutional Court in its Judgment 76/1990, of 26/04, considers that the right to the presumption of innocence entails: "that the sanction is based on acts or evidentiary means that incriminate the reproached conduct; that the burden of proof corresponds to the accuser, without anyone being obliged to prove their own innocence; and that any insufficiency in the result of the evidence presented, freely assessed by the sanctioning body, must result in an acquittal." The presumption of innocence applies without exceptions in the sanctioning system and must be respected in the imposition of any sanction, whether criminal or administrative (TCo 13/1981), as the exercise of the sanctioning right in any of its manifestations is conditioned by the evidence and a contradictory procedure in which the parties can defend their own positions.

According to this principle, no sanction can be imposed based on the guilt of the accused if there is no evidentiary activity that, in the assessment of the authorities or bodies called to resolve, destroys this

presumption (TCo Auto 3-12-81).

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IV

Therefore, based on the indications in the previous paragraphs, no evidence has been found that substantiates the existence of an infringement within the jurisdiction of the Spanish Agency for Data Protection.

The remaining issues should, if applicable, be resolved in the appropriate judicial instances or follow the precise guidelines that the local Security Forces may provide in cases like the one presented, avoiding instrumentalizing this agency in matters far removed from the effective protection of personal data rights.

In accordance with what has been stated, by the Director of the Spanish Agency for Data Protection, IT IS AGREED:

FIRST: TO PROCEED WITH THE ARCHIVING of the present proceedings.

SECOND: TO NOTIFY this resolution to A.A.A. and to the complaining party.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process as prescribed by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and in section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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